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FEATURED

Springfield shares Flock camera data with ICE-affiliated agencies, block immigration searches

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Lowe's stores across the region have automated license plate readers, typically at entry points into the properties or in the parking lots. Records of Flock shared networks obtained by this news outlet indicate that Lowe's and Home Depot stores in the state provide at least some local police agencies with access to their stores' ALPR databases. CORNELIUS FROLIK / STAFF

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Springfield, like many Ohio cities, uses automated license plate readers and shares the data the cameras collect with outside agencies. However, the city remains a unique flashpoint in the national immigration debate following Donald Trump's debunked 2024 claims regarding Haitian migrants.

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Springfield police provide about 2,500 outside agencies with access to its Flock automated license plate reader database, including some groups that have cooperation agreements with Immigration and Customs Enforcement and others that have searched local police departments' ALPR databases for immigration-related reasons, according to Flock network records obtained by the Springfield News-Sun.

Haitian nationals who have lived in Springfield lawfully through the Temporary Protected Status program potentially could be detained and deported after the U.S. Supreme Court on Thursday, June 25, gave the Trump administration the green light to cancel Haiti's TPS designation.



Springfield police cruisers in 2022.

FILE

Some community members and immigrant advocacy groups say they fear that federal authorities may try to use data from Springfield's ALPR system to locate immigrants and take action against them.

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However, Springfield Police Division Captain Jeff Williams said as of earlier this year that the agency filters out any immigration-related searches.

“We wanted to make sure that any searches for anyone that might be in Springfield or the vehicles that might be in Springfield are truly crime-related,” Williams said.

“Our position on immigration is that we are here to make sure that everyone in this city is safe, regardless if they’re a legal immigrant, an illegal immigrant, someone who’s been here for decades, someone who just moved here; we don’t care. We want everybody to be safe.”

Springfield Police Chief Allison Elliott said all law enforcement agencies who access Flock data do so with the understanding that they must be searching for a legitimate law enforcement purpose, very similar to the rules surrounding accessing the Ohio Law Enforcement Gateway, which SPD uses as its reporting system.

“We recognize that things do occur and if something [wrong] is brought to our attention, obviously we will be sure that we address that ... but we operate in good faith,” Elliott said. “And that they are operating in good faith in accordance with our guidelines and their agency’s policies and guidelines.”

The Springfield News-Sun, through a public records request, obtained a list of outside agencies that can access the Springfield Police Department’s Flock ALPR database. Springfield has 38 ALPR Flock cameras in the city, which officials say were installed in “hot spot” locations that were selected based on an analysis of crime and public safety data.

 Flock cameras: How they work and why some are concerned

The 2,500 groups with network access include many Ohio police departments and sheriff’s offices, and a variety of agencies around the country. Springfield has access to about 2,755 Flock networks and Williams said some data was shared “proactively” and the sharing agency did not ask Springfield to reciprocate. Some networks are from private businesses that would not be privy to law enforcement data.

The Springfield Police Division denied this news outlet’s request for audit logs that would show which external agencies have searched the department’s ALPR database and the reasons they provided for running their queries. They cited state law that they said states ALPR search data is not a public record and search audits would be classified as data.

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Other police departments in southwest Ohio have provided audit logs to the Springfield News-Sun, which revealed that many have allowed external agencies to search their databases explicitly for immigration reasons.

In internal audits of Springfield Flock camera searches, Elliott said none related to immigration have been found. However, there usually are far more database searches by external agencies than there are internal queries.

Flock, a leading maker of ALPR systems, says the company does not have any agreements with ICE, and federal authorities do not have direct access to its customers' ALPR systems. However, local and state law enforcement with Flock cameras can share their data with ICE or potentially can search external databases on ICE's behalf.

Records reveal that about 150 of the agencies that have permission to search the Springfield police's Flock database have 287(g) agreements with ICE, according to this news outlet's analysis. 287(g) memorandums of understanding allow local law enforcement to enforce some aspects of federal immigration law.

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A Flock camera on Xenia Avenue, in Dayton, in May. The city of Dayton has since covered its Flock cameras in the city.
CORNELIUS FROLIK / STAFF

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For instance, the Sevierville Police Department in Tennessee, which has access to Springfield's Flock network, recently helped ICE make more than 100 arrests of people suspected of living in the country illegally. The eastern Tennessee police department also conducted dozens of immigration-related searches of the Tipp City Police Department's ALPR database from early March to early April, according to Tipp City's Flock audit records.

Springfield police also share network access with the Marshall County Sheriff's Office in northeastern Alabama. The sheriff's office, which has an ICE 287(g) agreement, arrested around 14 people for immigration-related offenses during a traffic operation late last year, and the agency also searched Tipp City's ALPR database dozens of times in March for immigration-related

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The Springfield News-Sun identified about 10 agencies that have access to Springfield's ALPR database that also both have ICE agreements and recently searched local police departments' Flock networks explicitly for immigration reasons.

Melissa Rexroth, a community activist in Springfield, recently publicly asked the Springfield City Commission to cancel the city's contract with Flock.

Rexroth told the Springfield News-Sun that she does not think the police department should be sharing ALPR data with outside organizations. She said the city right now cannot be trusted to protect people's privacy.

"The way that they run things there is no transparency, there's no accountability, there's no oversight," she said. "I don't trust them to have any of this information. ... There's so many things we don't know."

 Dayton Public Schools board votes to continue using Flock cameras

Rexroth said ALPRs are a real threat to immigrants, including Haitian-born community members who could lose legal protections. She said Springfield police, generally speaking, have been fairly good to the city's Haitian population, but ALPR data is a big problem if it winds up in the wrong hands.

Many Haitian TPS holders have lawfully lived in the United States long enough that they have automobiles registered in their names, and ALPR data potentially could help authorities track these community members and determine where they go and where they can be found, said Kathleen Kersh, managing attorney at Advocates for Basic Legal Equality, a nonprofit that provides legal services to immigrants.

Kersh said she has come to the conclusion that there are no safeguards that can be put in place that can truly prevent Flock ALPRs from being misused, including for immigration enforcement.

"If the point of cameras is to share data with other agencies — which I think it is, at the end of the day — then you can't really ever make sure that those agencies are not sharing data with ICE," she said.

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Viles Desrosiers, president of the local Haitian Community and Support Center, said he believes ICE will use whatever method they can to access the data of Haitian immigrants.

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“I think whichever way possible for them to attain their objectives or their purpose, they will do it, whether it is through the police force or the through any type of institution,” Dorsainvil said, though he noted he has not heard of this happening in Springfield.

Immigration-related searches are not the only type of query that concerns privacy advocacy groups.

An investigation by the Springfield Sun-News found that outside law enforcement can search Flock ALPR systems for all kinds of stated reasons, and there is no surefire way to verify that the reasons provided are the actual reasons for the searches. Countless ALPR network searches have vague search descriptions, like “investigation,” “other — information” or “other — investigation.”

But Williams said Springfield has a setting enabled that requires agencies to type a reason after selecting a more vague reason like “other” and if SPD found anyone was being “deceptive,” they would immediately stop sharing the network with them and take appropriate steps.

The cameras are set up in a way that ensures they only capture images visible in a public right-of-way, Williams said.

The Springfield police department is working toward finalizing an update to the audit policy, Elliott said.

The city of Dayton recently turned off its fixed-site ALPR cameras after revealing that thousands of external searches of its network were conducted explicitly for immigration-related reasons, even though this violated police policy.

The city of Kettering stopped allowing immigration-related searches by outside groups after this news outlet requested — and later obtained — ALPR data showing that this type of query was taking place.

Kersh, with ABLE, believes that communities should get rid of their plate readers, because she says there is no way to guarantee they are being used the right way, in line with policies and community expectations. But, failing that, she said cities and police departments should restrict how long ALPR data is retained.

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A Springfield training bulletin says Flock will only maintain ALPR images for 30 days. Some agencies only keep the data for 24 hours or less. Kersh said this is one way to help ensure that ALPR data is used for law enforcement purposes and not for mass surveillance.

Elliott said the police department has heard privacy concerns and take those seriously. She said since the department starting using ALPRs in 2023, the technology’s ability to solve crimes has “drastically increased.”

“We understand why folks become concerned, especially if you’re not familiar with the different platforms and their capabilities,” Elliott said. “We want to have those conversations with people and we take each matter seriously that somebody brings to our attention. We’re constantly evolving as well with our systems and putting safeguards into place, and if we do find an issue that has come up we want to be aware of it and we want to make sure that we’re looking into it and addressing it as needed.

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